



Firearms (Amendment) Act 1988

1988 CHAPTER 45

An Act to amend the Firearms Act 1968 and to make further provision for regulating the possession of, and transactions relating to, firearms and ammunition. [15th November 1988]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Specially dangerous weapons

1.—(1) Section 5 of the Firearms Act 1968 (in this Act referred to as “the principal Act”) shall have effect with the following amendments the purpose of which is to extend the class of prohibited weapons and ammunition, that is to say weapons and ammunition the possession, purchase, acquisition, manufacture, sale or transfer of which requires the authority of the Secretary of State.

Prohibited
weapons and
ammunition.
1968 c. 27.

(2) For paragraph (a) of subsection (1) there shall be substituted—

- “(a) any firearm which is so designed or adapted that two or more missiles can be successively discharged without repeated pressure on the trigger;
- (ab) any self-loading or pump-action rifle other than one which is chambered for .22 rim-fire cartridges;
- (ac) any self-loading or pump-action smooth-bore gun which is not chambered for .22 rim-fire cartridges and either has a barrel less than 24 inches in length or (excluding any detachable, folding, retractable or other movable butt-stock) is less than 40 inches in length overall;
- (ad) any smooth-bore revolver gun other than one which is chambered for 9mm. rim-fire cartridges or loaded at the muzzle end of each chamber;

(ae) any rocket launcher, or any mortar, for projecting a stabilised missile, other than a launcher or mortar designed for line-throwing or pyrotechnic purposes or as signalling apparatus;”.

(3) For paragraph (c) of subsection (1) there shall be substituted—

“(c) any cartridge with a bullet designed to explode on or immediately before impact, any ammunition containing or designed or adapted to contain any such noxious thing as is mentioned in paragraph (b) above and, if capable of being used with a firearm of any description, any grenade, bomb (or other like missile), or rocket or shell designed to explode as aforesaid.”

(4) If it appears to the Secretary of State that the provisions of the principal Act relating to prohibited weapons or ammunition should apply to—

(a) any firearm (not being an air weapon) which is not for the time being specified in subsection (1) of section 5, was not lawfully on sale in Great Britain in substantial numbers at any time before 1988 and appears to him to be—

(i) specially dangerous; or

(ii) wholly or partly composed of material making it not readily detectable by apparatus used for detecting metal objects; or

(b) any ammunition which is not for the time being specified in that subsection but appears to him to be specially dangerous,

he may by order add it to the weapons or ammunition specified in that subsection whether by altering the description of any weapon or ammunition for the time being there specified or otherwise.

(5) The power to make an order under subsection (4) above shall be exercisable by statutory instrument and no such order shall be made unless a draft of it has been laid before and approved by a resolution of each House of Parliament.

Weapons requiring firearm certificate

Re-definition of
exempted shot
guns.

2.—(1) Section 1 of the principal Act shall have effect with the following amendments the purpose of which is to require a firearm certificate for certain types of shot gun.

(2) For paragraph (a) of subsection (3) (which exempts shot guns with barrels not less than 24 inches in length) there shall be substituted—

“(a) a shot gun within the meaning of this Act, that is to say a smooth-bore gun (not being an air gun) which—

(i) has a barrel not less than 24 inches in length and does not have any barrel with a bore exceeding 2 inches in diameter;

(ii) either has no magazine or has a non-detachable magazine incapable of holding more than two cartridges; and

(iii) is not a revolver gun; and”.

(3) After subsection (3) there shall be inserted—

“(3A) A gun which has been adapted to have such a magazine as is mentioned in subsection (3)(a)(ii) above shall not be regarded as falling within that provision unless the magazine bears a mark approved by the Secretary of State for denoting that fact and that mark has been made, and the adaptation has been certified in writing as having been carried out in a manner approved by him, either by one of the two companies mentioned in section 58(1) of this Act or by such other person as may be approved by him for that purpose.”

Shot guns

3.—(1) For section 28(1) of the principal Act (criteria for grant of shot gun certificates) there shall be substituted—

Grant and renewal of shot gun certificates.

“(1) Subject to subsection (1A) below, a shot gun certificate shall be granted or, as the case may be, renewed by the chief officer of police if he is satisfied that the applicant can be permitted to possess a shot gun without danger to the public safety or to the peace.

(1A) No such certificate shall be granted or renewed if the chief officer of police—

- (a) has reason to believe that the applicant is prohibited by this Act from possessing a shot gun; or
- (b) is satisfied that the applicant does not have a good reason for possessing, purchasing or acquiring one.

(1B) For the purposes of paragraph (b) of subsection (1A) above an applicant shall, in particular, be regarded as having a good reason if the gun is intended to be used for sporting or competition purposes or for shooting vermin; and an application shall not be refused by virtue of that paragraph merely because the applicant intends neither to use the gun himself nor to lend it for anyone else to use.”

(2) After section 28(2) of the principal Act (form and contents of shot gun certificates) there shall be inserted—

“(2A) A shot gun certificate shall specify the description of the shot guns to which it relates including, if known, the identification numbers of the guns.”

4.—(1) This section applies where a person—

Transfers of shot guns.

- (a) sells, lets on hire or gives a shot gun; or
- (b) lends a shot gun for a period of more than seventy-two hours, to another person in the United Kingdom who is neither a registered firearms dealer nor a person who shows that he is by virtue of the principal Act or this Act entitled to purchase or acquire the shot gun without holding a shot gun certificate.

(2) The transferor shall—

- (a) comply with any instructions contained in the certificate produced by the transferee; and
- (b) within seven days of the transaction send a notice of the transaction to the chief officer of police who issued the transferor's certificate or, if he is by virtue of the principal Act or this Act entitled to be in possession of the shot gun without holding a certificate, to the chief officer of police who issued the transferee's certificate.

(3) The transferee shall, within seven days of the transaction, send a notice of the transaction to the chief officer of police who issued his certificate.

(4) The notice of a transaction under subsection (2) or (3) above shall contain a description of the shot gun in question (giving the identification number if any) and state the nature of the transaction and the name and address of the other person concerned; and any such notice shall be sent by registered post or the recorded delivery service.

(5) It is an offence to fail to comply with this section and that offence shall be punishable on summary conviction with imprisonment for a term not exceeding six months or a fine not exceeding level 5 on the standard scale or both.

Restriction on sale of ammunition for smooth-bore guns.

5.—(1) This section applies to ammunition to which section 1 of the principal Act does not apply and which is capable of being used in a shot gun or in a smooth-bore gun to which that section applies.

(2) It is an offence for a person to sell any such ammunition to another person in the United Kingdom who is neither a registered firearms dealer nor a person who sells such ammunition by way of trade or business unless that other person—

- (a) produces a certificate authorising him to possess a gun of a kind mentioned in subsection (1) above; or
- (b) shows that he is by virtue of that Act or this Act entitled to have possession of such a gun without holding a certificate; or
- (c) produces a certificate authorising another person to possess such a gun, together with that person's written authority to purchase the ammunition on his behalf.

(3) An offence under this section shall be punishable on summary conviction with imprisonment for a term not exceeding six months or a fine not exceeding level 5 on the standard scale or both.

Converted and de-activated weapons

Shortening of barrels.

6.—(1) Subject to subsection (2) below, it is an offence to shorten to a length less than 24 inches the barrel of any smooth-bore gun to which section 1 of the principal Act applies other than one which has a barrel with a bore exceeding 2 inches in diameter; and that offence shall be punishable—

- (a) on summary conviction, with imprisonment for a term not exceeding six months or a fine not exceeding the statutory maximum or both;
- (b) on indictment, with imprisonment for a term not exceeding five years or a fine or both.

(2) It is not an offence under this section for a registered firearms dealer to shorten the barrel of a gun for the sole purpose of replacing a defective part of the barrel so as to produce a barrel not less than 24 inches in length.

7.—(1) Any weapon which—

- (a) has at any time (whether before or after the passing of this Act) been a weapon of a kind described in section 5(1) of the principal Act as amended by or under section 1 above; and
- (b) is not a self-loading or pump-action smooth-bore gun which has at any such time been such a weapon by reason only of having had a barrel less than 24 inches in length,

Conversion not to affect classification.

shall be treated as a prohibited weapon notwithstanding anything done for the purpose of converting it into a weapon of a different kind.

(2) Any weapon which—

- (a) has at any time since the coming into force of section 2 above been a weapon to which section 1 of the principal Act applies; or
- (b) would at any previous time have been such a weapon if those sections had then been in force,

shall, if it has, or at any time has had, a rifled barrel less than 24 inches in length, be treated as a weapon to which section 1 of the principal Act applies notwithstanding anything done for the purpose of converting it into a shot gun or an air weapon.

(3) For the purposes of subsection (2) above there shall be disregarded the shortening of a barrel by a registered firearms dealer for the sole purpose of replacing part of it so as to produce a barrel not less than 24 inches in length.

8. For the purposes of the principal Act and this Act it shall be presumed, unless the contrary is shown, that a firearm has been rendered incapable of discharging any shot, bullet or other missile, and has consequently ceased to be a firearm within the meaning of those Acts, if—

De-activated weapons.

- (a) it bears a mark which has been approved by the Secretary of State for denoting that fact and which has been made either by one of the two companies mentioned in section 58(1) of the principal Act or by such other person as may be approved by the Secretary of State for the purposes of this section; and
- (b) that company or person has certified in writing that work has been carried out on the firearm in a manner approved by the Secretary of State for rendering it incapable of discharging any shot, bullet or other missile.

Firearm and shot gun certificates

9. In section 26(2)(a) of the principal Act (rules requiring applications for certificates to be accompanied by a photograph of the applicant) for the words “a photograph” there shall be substituted the words “up to four photographs” and the power conferred by sections 27(2) and 28(2) of that Act to prescribe the form of a firearm or shot gun certificate shall include power to require the certificate to bear a photograph of the holder.

Photographs on certificates.

10. After section 26(2)(b) of the principal Act (rules requiring verification of matters contained in applications for certificates) there shall be inserted—

Statements in support of applications for certificates.

“(c) require any application for a certificate to be accompanied by a statement by the person verifying the matters mentioned in paragraph (b) above to the effect that he knows of no reason why the applicant should not be permitted to possess a firearm.”

Grant of co-terminous certificates.

11.—(1) Where a person who holds a firearm certificate applies for the grant or renewal of a shot gun certificate that certificate may, if he so requests, be granted or renewed for such period less than that specified in or prescribed under section 26(3) of the principal Act as will secure that it ceases to be in force at the same time as the firearm certificate.

(2) Where a person who holds a shot gun certificate, or both such a certificate and a firearm certificate, applies for the grant of a firearm certificate, or for the renewal of the firearm certificate held by him, he may, on surrendering his shot gun certificate, apply for a new shot gun certificate to take effect on the same day as that on which the firearm certificate is granted or renewed.

(3) Where a shot gun certificate is granted to a person or such a certificate held by him is renewed and on the same occasion he is granted a firearm certificate or such a certificate held by him is renewed the fee payable on the grant or renewal of the shot gun certificate shall be £5 instead of that specified in section 32 of the principal Act.

(4) Subsection (3) above shall be included in the provisions that may be amended by an order under section 43 of the principal Act.

Revocation of certificates.

12.—(1) Where a certificate is revoked by the chief officer of police under section 30(1)(a) or (2) of the principal Act he may by notice in writing require the holder of the certificate to surrender forthwith the certificate and any firearms and ammunition which are in the holder's possession by virtue of the certificate.

(2) It is an offence to fail to comply with a notice under subsection (1) above; and that offence shall be punishable on summary conviction with imprisonment for a term not exceeding three months or a fine not exceeding level 4 on the standard scale or both.

(3) Where a firearm or ammunition is surrendered in pursuance of a notice under subsection (1) above, then—

(a) if an appeal against the revocation of the certificate succeeds, the firearm or ammunition shall be returned;

(b) if such an appeal is dismissed, the court may make such order for the disposal of the firearm or ammunition as it thinks fit;

(c) if no such appeal is brought or such an appeal is abandoned, the firearm or ammunition shall be disposed of—

(i) in such manner as the chief officer of police and the owner may agree; or

(ii) in default of agreement, in such manner as the chief officer may decide;

but subject, in a case within sub-paragraph (ii), to the provisions of subsection (4) below.

(4) The chief officer of police shall give the owner notice in writing of any decision under subsection (3)(c)(ii) above, the owner may appeal against that decision in accordance with section 44 of the principal Act and on such an appeal the court may either dismiss the appeal or make such order as to the disposal of the firearm or ammunition as it thinks fit.

(5) Subsection (4) of section 30 of the principal Act (surrender of revoked certificate within twenty-one days with extension in cases of appeal) shall not apply where the revocation is under subsection (1)(a) or (2) of that section and a notice is served under subsection (1) above; and paragraph 1 of Part I and paragraphs 1 to 5 of Part II of Schedule 5 to that Act (appeal jurisdiction and procedure) shall apply to an appeal under subsection (4) above as they apply to an appeal against the revocation of a certificate.

Firearms dealers and other businesses

13.—(1) In section 33(5) of the principal Act (annual renewal of dealer's registration certificate) for the words "on or before 1st June in each year" there shall be substituted the words "on or before the expiration of the period of three years from the grant of the certificate of registration for the time being held by him". Firearms dealers.

(2) In section 34 of that Act (grounds for refusal of registration) after subsection (1) there shall be inserted—

"(1A) The chief officer of police may refuse to register an applicant unless he is satisfied that the applicant will engage in business as a firearms dealer to a substantial extent or as an essential part of another trade, business or profession."

(3) In section 38(8) of that Act (dealer to surrender his certificate of registration on being removed from the register) after the words "surrender his certificate of registration" there shall be inserted the words "and the register of transactions kept by him under section 40 of this Act".

(4) After section 40(3) of that Act (entry of transactions in the register) there shall be inserted—

"(3A) Every person keeping a register in accordance with this section shall (unless required to surrender the register under section 38(8) of this Act) keep it for such a period that each entry made after the coming into force of this subsection will be available for inspection for at least five years from the date on which it was made."

(5) In the Table in Part I of Schedule 6 to that Act (punishments for offences) in the second column of the entry relating to section 38(8), after the words "certificate of registration" there shall (in consequence of subsection (3) above) be inserted the words "or register of transactions".

14.—(1) It is an offence for an auctioneer, carrier or warehouseman—

(a) to fail to take reasonable precautions for the safe custody of any firearm or ammunition which, by virtue of section 9(1) of the principal Act, he or any servant of his has in his possession without holding a certificate; or

Auctioneers,
carriers and
warehousemen.

- (b) to fail to report forthwith to the police the loss or theft of any such firearm or ammunition.

(2) An offence under this section shall be punishable on summary conviction with imprisonment for a term not exceeding six months or a fine not exceeding level 5 on the standard scale or both.

Exemptions

Rifle and pistol clubs.

15.—(1) A member of a rifle club, miniature rifle club or pistol club approved by the Secretary of State may, without holding a firearm certificate, have in his possession a firearm and ammunition when engaged as a member of the club in, or in connection with, target practice.

(2) Any approval under this section may be limited so as to apply to target practice with only such types of rifles or pistols as are specified in the approval.

(3) An approval under this section shall, unless withdrawn, continue in force for six years from the date on which it is granted but may be renewed for further periods of six years at a time.

(4) There shall be payable on the grant or renewal of an approval under this section a fee of £33 but this subsection shall be included in the provisions that may be amended by an order under section 43 of the principal Act.

(5) A constable duly authorised in writing in that behalf by a chief officer of police may, on producing if required his authority, enter any premises occupied or used by a club approved under this section and inspect those premises, and anything on them, for the purpose of ascertaining whether the provisions of this section and any limitations in the approval are being complied with.

(6) It is an offence for a person intentionally to obstruct a constable in the exercise of his powers under subsection (5) above; and that offence shall be punishable on summary conviction with a fine not exceeding level 3 on the standard scale.

(7) In section 11(3) of the principal Act (which, as respects rifle clubs and miniature rifle clubs, is superseded by this section) the words "rifle club or miniature rifle club or" and "club or" (in the second place) shall be omitted.

(8) In section 32(2) of that Act (exemption from fee for firearm certificate for responsible officer of a rifle club or miniature rifle club) after the words "miniature rifle club" there shall be inserted the words "pistol club" and at the end there shall be added the words "but in the case of a club whose approval is limited to target practice with specified types of rifles or pistols this subsection shall apply only to a certificate in respect of rifles or pistols of those types".

(9) Any approval of a rifle or miniature rifle club under section 11(3) of the principal Act shall have effect as if it were an approval under this section except that (without prejudice to renewal) it shall expire at the end of the period of three years beginning with the day on which this section comes into force.

16.—(1) A person of or over the age of seventeen may, without holding a firearm certificate, borrow a rifle from the occupier of private premises and use it on those premises in the presence either of the occupier or of a servant of the occupier if—

Borrowed rifles on private premises.

- (a) the occupier or servant in whose presence it is used holds a firearm certificate in respect of that rifle; and
- (b) the borrower's possession and use of it complies with any conditions as to those matters specified in the certificate.

(2) A person who by virtue of subsection (1) above is entitled without holding a firearm certificate to borrow and use a rifle in another person's presence may also, without holding such a certificate, purchase or acquire ammunition for use in the rifle and have it in his possession during the period for which the rifle is borrowed if—

- (a) the firearm certificate held by that other person authorises the holder to have in his possession at that time ammunition for the rifle of a quantity not less than that purchased or acquired by, and in the possession of, the borrower; and
- (b) the borrower's possession and use of the ammunition complies with any conditions as to those matters specified in the certificate.

17.—(1) The holder of a visitor's firearm permit may, without holding a firearm certificate, have in his possession any firearm, and have in his possession, purchase or acquire any ammunition, to which section 1 of the principal Act applies; and the holder of a visitor's shot gun permit may, without holding a shot gun certificate, have shot guns in his possession and purchase or acquire shot guns.

Visitors' permits.

(2) The chief officer of police for an area may, on an application in the prescribed form made by a person resident in that area on behalf of a person specified in the application, grant a permit under this section to the specified person if satisfied that he is visiting or intending to visit Great Britain and—

- (a) in the case of a visitor's firearm permit, that he has a good reason for having each firearm and the ammunition to which the permit relates in his possession, or, as respects ammunition, for purchasing or acquiring it, while he is a visitor to Great Britain;
- (b) in the case of a visitor's shot gun permit, that he has a good reason for having each shot gun to which the permit relates in his possession, or for purchasing or acquiring it, while he is such a visitor.

(3) No permit shall be granted under this section to a person if the chief officer of police has reason to believe—

- (a) that his possession of the weapons or ammunition in question would represent a danger to the public safety or to the peace; or
- (b) that he is prohibited by the principal Act from possessing them.

(4) A permit under this section shall be in the prescribed form, shall specify the conditions subject to which it is held and—

- (a) in the case of a visitor's firearm permit, shall specify the number and description of the firearms to which it relates, including their identification numbers, and, as respects ammunition, the quantities authorised to be purchased or acquired and to be held at any one time;
- (b) in the case of a visitor's shot gun permit, shall specify the number and description of the shot guns to which it relates, including, if known, their identification numbers.

(5) The chief officer of police by whom a permit under this section is granted may by notice in writing to the holder vary the conditions subject to which the permit is held but, in the case of a visitor's shot gun permit, no condition shall be imposed or varied so as to restrict the premises where the shot gun or guns to which the permit relates may be used.

(6) A permit under this section shall come into force on such date as is specified in it and continue in force for such period, not exceeding twelve months, as is so specified.

(7) A single application (a "group application") may be made under this section for the grant of not more than twenty permits to persons specified in the application if it is shown to the satisfaction of the chief officer of police that their purpose in having the weapons in question in their possession while visiting Great Britain is—

- (a) using them for sporting purposes on the same private premises during the same period; or
- (b) participating in the same competition or other event or the same series of competitions or other events.

(8) There shall be payable on the grant of a permit under this section a fee of £12 except that where six or more permits are granted on a group application the fee shall be £60 in respect of those permits taken together.

(9) Subsection (8) above shall be included in the provisions that may be amended by an order under section 43 of the principal Act.

(10) It is an offence for a person—

- (a) to make any statement which he knows to be false for the purpose of procuring the grant of a permit under this section; or
- (b) to fail to comply with a condition subject to which such a permit is held by him;

and each of those offences shall be punishable on summary conviction with imprisonment for a term not exceeding six months or a fine not exceeding level 5 on the standard scale or both.

Firearms acquired
for export.

18.—(1) A person may, without holding a firearm or shot gun certificate, purchase a firearm from a registered firearms dealer if—

- (a) that person has not been in Great Britain for more than thirty days in the preceding twelve months; and
- (b) the firearm is purchased for the purpose only of being exported from Great Britain without first coming into that person's possession.

(2) A registered firearms dealer who sells a firearm to a person who shows that he is entitled by virtue of subsection (1) above to purchase it without holding a certificate shall within forty-eight hours from the transaction send a notice of the transaction to the chief officer of police in whose register the premises where the transaction took place are entered.

(3) The notice of a transaction under subsection (2) above shall contain the particulars of the transaction which the dealer is required to enter in the register kept by him under section 40 of the principal Act and every such notice shall be sent by registered post or the recorded delivery service.

(4) In the case of a transaction to which subsection (2) above applies the particulars to be entered in the register kept under section 40 of the principal Act (and accordingly contained in a notice under subsection (3) above) shall include the number and place of issue of the purchaser's passport, if any.

(5) It is an offence for a registered firearms dealer to fail to comply with subsection (2) above; and that offence shall be punishable on summary conviction with imprisonment for a term not exceeding six months or a fine not exceeding level 5 on the standard scale or both.

19. The Schedule to this Act shall have effect for exempting firearms and ammunition in museums from certain provisions of the principal Act.

Firearms and
ammunition in
museums.

Miscellaneous and supplementary

20.—(1) Section 6 of the principal Act (power to control movement of arms and ammunition) shall be amended as follows.

Removal of arms
and ammunition
to Northern
Ireland.

(2) After subsection (1) there shall be inserted—

“(1A) The Secretary of State may by order prohibit the removal of firearms or ammunition from Great Britain to Northern Ireland unless—

- (a) the removal is authorised by the chief officer of police for the area from which they are to be removed and by the Chief Constable of the Royal Ulster Constabulary; and
- (b) such conditions as may be specified in the order or imposed by the chief officer of police or the Chief Constable are complied with.”

(3) Paragraph (b) of subsection (1) (which is superseded by the new subsection (1A)) shall be omitted.

21. The Secretary of State shall, in accordance with a scheme made by him, make payments to persons who surrender or otherwise dispose of firearms—

Payments in
respect of
prohibited
weapons.

- (a) which they had, and were entitled to have, in their possession immediately before 23rd September 1987 by virtue of firearm or shot gun certificates held by them; or
- (b) which before that date they had contracted to acquire and were entitled to have in their possession on or after that date by virtue of such certificates held by them,

and the possession of which will become, or has become, unlawful by virtue of section 1(2) or 7(1) above.

Firearms
consultative
committee.

1982 c. 31.

22.—(1) There shall be established in accordance with the provisions of this section a firearms consultative committee consisting of a chairman and not less than twelve other members appointed by the Secretary of State, being persons appearing to him to have knowledge and experience of one or more of the following matters—

- (a) the possession, use or keeping of, or transactions in, firearms;
- (b) weapon technology; and
- (c) the administration or enforcement of the provisions of the principal Act, the Firearms Act 1982 and this Act.

(2) The reference in subsection (1)(a) above to the use of firearms includes in particular a reference to their use for sport or competition.

(3) Subject to subsection (4) below, a member of the committee shall hold and vacate office in accordance with the terms of his appointment.

(4) Any member of the committee may resign by notice in writing to the Secretary of State; and the chairman may by such a notice resign his office as such.

(5) It shall be the function of the committee—

- (a) to keep under review the working of the provisions mentioned in subsection (1)(c) above and to make to the Secretary of State such recommendations as the committee may from time to time think necessary for the improvement of the working of those provisions;
- (b) to make proposals for amending those provisions if it thinks fit; and
- (c) to advise the Secretary of State on any other matter relating to those provisions which he may refer to the committee.

(6) The committee shall in each year make a report on its activities to the Secretary of State who shall lay copies of the report before Parliament.

(7) The Secretary of State may make to members of the committee such payments as he may determine in respect of expenses incurred by them in the performance of their duties.

(8) The committee shall cease to exist at the end of the period of five years beginning with the day on which this section comes into force unless the Secretary of State provides by an order made by statutory instrument for it to continue thereafter, but no such order shall continue the committee for more than three years at a time.

Minor and
consequential
amendments and
repeals.

23.—(1) In section 4 of the principal Act (conversion of weapons) in subsection (4), for the words “converted contrary to subsection (3) above” there shall be substituted the words “converted as mentioned in subsection (3) above”.

(2) In section 12(2) of that Act (exemption for theatrical etc. performances) for the words “such a firearm as is described in section 5(1)(a) of this Act” there shall be substituted the words “a prohibited weapon” and for the words “the firearm” there shall be substituted the words “the weapon”.

(3) In sections 13(1)(c), 40(4) and 49(1) of that Act (which refer to officers of police) for the words “an officer of police”, wherever occurring, there shall be substituted the words “a constable”.

(4) In sections 22(2) and 24(2)(b) of that Act (exemption for minors in cases to which section 11(3) applies) after the words "of this Act" there shall be inserted the words "or section 15 of the Firearms (Amendment) Act 1988" and in section 23(2)(a) of that Act (which contains a similar exemption) for the words "section 11(3) of this Act" there shall be substituted the words "section 15 of the Firearms (Amendment) Act 1988".

(5) In section 27(2) of that Act (matters to be specified in firearm certificate) after the words "the nature and number of the firearms to which it relates" there shall be inserted the words ", including if known their identification numbers," and after the word "purchased" there shall be inserted the words "or acquired".

(6) In subsection (1) of section 42 of that Act (transferor of firearm to which section 1 applies to give notice of transaction to a chief officer of police) for the words "forty-eight hours" there shall be substituted the words "seven days" and after that subsection there shall be inserted—

"(1A) The notice under subsection (1) above shall contain a description of the firearm (giving the identification number if any) and state the nature of the transaction and the name and address of the other person concerned."

(7) In Part I of Schedule 6 to that Act (penalties), in the entry relating to section 9(3) (false statement to obtain permit for auction of firearms) for columns 3 and 4 there shall be substituted the following—

"Summary	6 months or a fine not exceeding level 5 on the standard scale; or both."
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(8) Section 14 of that Act (persons temporarily in Great Britain) is hereby repealed.

24.—(1) Any administrative expenses incurred by the Secretary of State under section 15 or 22 above or the Schedule to this Act and any sums required by him for making payments under section 21 or 22 above shall be paid out of money provided by Parliament.

Expenses and receipts.

(2) Any fees received by the Secretary of State under section 15 above or the Schedule to this Act shall be paid into the Consolidated Fund.

25.—(1) In this Act "the principal Act" means the Firearms Act 1968 and any expression which is also used in that Act has the same meaning as in that Act.

Interpretation and supplementary provisions.
1968 c. 27.

(2) In section 57 of the principal Act (definitions) after subsection (2) there shall be inserted—

"(2A) In this Act "self-loading" and "pump-action" in relation to any weapon mean respectively that it is designed or adapted (otherwise than as mentioned in section 5(1)(a)) so that it is automatically re-loaded or that it is so designed or adapted that it is re-loaded by the manual operation of the fore-end or forestock of the weapon.

(2B) In this Act "revolver", in relation to a smooth-bore gun, means a gun containing a series of chambers which revolve when the gun is fired."

(3) In section 57(4) of the principal Act after the definition of "registered" there shall be inserted—
 " 'rifle' includes carbine;".

(4) Any reference in the principal Act to a person who is by virtue of that Act entitled to possess, purchase or acquire any weapon or ammunition without holding a certificate shall include a reference to a person who is so entitled by virtue of any provision of this Act.

(5) Sections 46, 51(4) and 52 of the principal Act (powers of search, time-limit for prosecutions and forfeiture and cancellation orders on conviction) shall apply also to offences under this Act except that on the conviction of a person for an offence under the Schedule to this Act no order shall be made for the forfeiture of anything in his possession for the purposes of the museum in question.

(6) Sections 53 to 56 and section 58 of the principal Act (rules, Crown application, service of notices and savings) shall have effect as if this Act were contained in that Act.

1982 c. 31.

(7) The provisions of this Act other than sections 15 and 17 shall be treated as contained in the principal Act for the purposes of the Firearms Act 1982 (imitation firearms readily convertible into firearms to which section 1 of the principal Act applies).

Corresponding
provisions for
Northern Ireland.
1974 c. 28.

26.—(1) An Order in Council under paragraph 1(1)(b) of Schedule 1 to the Northern Ireland Act 1974 (legislation for Northern Ireland in the interim period) which states that it is made only for purposes corresponding to those of the provisions of this Act to which this section applies—

(a) shall not be subject to paragraph 1(4) and (5) of that Schedule (affirmative resolution of both Houses of Parliament); but

(b) shall be subject to annulment in pursuance of a resolution of either House.

(2) This section applies to—

(a) section 1(1), (2) and (3);

(b) section 9;

(c) section 13(1), (3) and (5);

(d) section 14;

(e) section 15(5) and (6);

(f) section 23(2);

(g) section 25(1), (2), (5), (6) and (7).

Short title,
citation,
commencement
and extent.

27.—(1) This Act may be cited as the Firearms (Amendment) Act 1988.

(2) This Act and the Firearms Acts 1968 and 1982 may be cited together as the Firearms Acts 1968 to 1988.

(3) Except for section 26 and this section the provisions of this Act shall not come into force until such day as the Secretary of State may appoint by an order made by statutory instrument; and any such order may appoint different days for different provisions or different purposes and contain such transitional provisions as appear to the Secretary of State to be necessary or expedient in connection with any provision brought into force.

(4) Except for section 26 and this section this Act does not extend to Northern Ireland.

Section 19.

SCHEDULE

FIREARMS AND AMMUNITION IN MUSEUMS

Museum firearms licences

1.—(1) The Secretary of State may, on an application in writing made on behalf of a museum to which this Schedule applies, grant a museum firearms licence in respect of that museum.

(2) While a museum firearms licence (in this Schedule referred to as a "licence") is in force in respect of a museum the persons responsible for its management and their servants—

(a) may, without holding a firearm certificate or shot gun certificate, have in their possession, and purchase or acquire, for the purposes of the museum firearms and ammunition which are or are to be normally exhibited or kept on its premises or on such of them as are specified in the licence; and

(b) if the licence so provides, may, without the authority of the Secretary of State under section 5 of the principal Act, have in their possession, purchase or acquire for those purposes any prohibited weapons and ammunition which are or are to be normally exhibited or kept as aforesaid.

(3) The Secretary of State shall not grant a licence in respect of a museum unless, after consulting the chief officer of police for the area in which the premises to which the licence is to apply are situated, he is satisfied that the arrangements for exhibiting and keeping the firearms and ammunition in question are or will be such as not to endanger the public safety or the peace.

(4) A licence shall be in writing and be subject to such conditions specified in it as the Secretary of State thinks necessary for securing the safe custody of the firearms and ammunition in question.

(5) A licence shall, unless previously revoked or cancelled, continue in force for five years from the date on which it is granted but shall be renewable for further periods of five years at a time and sub-paragraph (3) above shall apply to the renewal of a licence as it applies to a grant.

(6) The Secretary of State may by order substitute for the periods mentioned in sub-paragraph (5) above such longer or shorter periods as are specified in the order.

(7) The power to make an order under sub-paragraph (6) above shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

Variation and revocation

2.—(1) The Secretary of State may by notice in writing to the persons responsible for the management of a museum—

(a) vary the conditions specified in a licence held in respect of the museum; or

(b) vary the licence so as to extend or restrict the premises to which it applies.

(2) A notice under sub-paragraph (1) above may require the persons in question to deliver up the licence to the Secretary of State within twenty-one days of the date of the notice for the purpose of having it amended in accordance with the variation.

(3) The Secretary of State may by notice in writing to the persons responsible for the management of a museum revoke a licence held in respect of the museum if—

SCH.

- (a) at any time, after consulting the chief officer of police for the area in which the premises to which it applies are situated, he is satisfied that the continuation of the exemption conferred by the licence would result in danger to the public safety or to the peace; or
- (b) those persons or any of them or any servant of theirs has been convicted of an offence under this Schedule; or
- (c) those persons have failed to comply with a notice under this paragraph requiring them to deliver up the licence.

(4) Where a licence is revoked the Secretary of State shall by notice in writing require the persons responsible for the management of the museum in question to surrender the licence to him.

Fees

3.—(1) There shall be payable—

- (a) on the grant or renewal of a licence a fee of £200 or of such lesser amount as the Secretary of State may in any particular case determine;
- (b) on the extension of a licence to additional premises, a fee of £75.

(2) This paragraph shall be included in the provisions that may be amended by an order under section 43 of the principal Act.

Offences and enforcement

4.—(1) It is an offence—

- (a) for a person to make any statement which he knows to be false for the purpose of procuring the grant, renewal or variation of a licence;
- (b) for the persons or any of the persons responsible for the management of a museum to fail to comply or to cause or permit another person to fail to comply with any condition specified in the licence held in respect of that museum.

(2) An offence under sub-paragraph (1) above shall be punishable on summary conviction with imprisonment for a term not exceeding six months or a fine not exceeding level 5 on the standard scale or both.

(3) It is an offence for a person to fail to comply with a notice under paragraph 2(4) above; and that offence shall be punishable on summary conviction with a fine not exceeding level 3 on the standard scale.

(4) In proceedings against any person for an offence under sub-paragraph (1)(b) above it is a defence for him to prove that he took all reasonable precautions and exercised all due diligence to avoid the commission of the offence.

(5) Where an offence under this paragraph committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate, or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and be liable to be proceeded against and punished accordingly.

(6) Where the affairs of a body corporate are managed by its members sub-paragraph (5) above shall apply in relation to the acts and defaults of a member in connection with his functions of management as if he were a director of the body corporate.

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Museums to which this Schedule applies

5. This Schedule applies to the following museums—

The Armouries, H.M. Tower of London

The National Army Museum

The National Museum of Wales

The Royal Air Force Museum

The Science Museum

The Victoria and Albert Museum

The Royal Marines Museum

The Fleet Air Arm Museum

The Royal Navy Museum

The Royal Navy Submarine Museum

The British Museum

The Imperial War Museum

The National Maritime Museum

The National Museums of Scotland

The National Museums and Galleries on Merseyside

The Wallace Collection

Any other museum or similar institution in Great Britain which has as its purpose, or one of its purposes, the preservation for the public benefit of a collection of historical, artistic or scientific interest which includes or is to include firearms and which is maintained wholly or mainly out of money provided by Parliament or by a local authority.

Interpretation

6. In this Schedule references to the persons responsible for the management of a museum are to the board of trustees, governing body or other person or persons (whether or not incorporated) exercising corresponding functions.